



October infringements package: key decisions

Brussels, 1 October 2026

Overview by policy area

In its regular package of infringement decisions, the European Commission takes legal action against Member States that fail to comply with their obligations under EU law. These decisions, covering various EU policy areas, aim to ensure the proper application of EU law for the benefit of citizens and businesses. The key decisions taken by the Commission are presented below and grouped by policy area.

The Commission is also closing [87 cases](#) where the issues with the Member States concerned have been solved. In these cases, the Commission does not have to pursue the infringement procedure further. The Commission's enforcement activities and Member States' compliance with EU law can be followed through [interactive maps and customisable graphs](#). For more details on the history of a case or to access the full database of infringement decisions, the [infringement decisions' register](#) is open for consultation. And more information on the EU infringement procedure can be found in the following [Q&A](#).

1. Environment

(For more information: Anna-Kaisa Itkonen – Tel.: +32 2 295 75 01; Maëlys Dreux – Tel.: +32 229 54673)

Reasoned opinions

Commission calls on Sweden to correctly transpose the Urban Waste Water Treatment Directive

Today, the European Commission decided to send a reasoned opinion to **Sweden** ([INFR\(2020\)2096](#)) for failing to implement certain measures required under the Urban Waste Water Treatment Directive ([Council Directive 91/271/EEC](#)). These obligations are not affected by the recast Urban Wastewater Treatment Directive ([Directive \(EU\) 2024/3019](#)) that must be transposed into national law by 31 July 2027. Effective treatment of urban wastewater contributes to the objectives of the [Water Resilience Strategy](#). Untreated wastewater can put human health at risk and pollutes lakes, rivers, soil and coastal waters and groundwater, including drinking water collection areas. Sweden did not put in place technical standards for the design, construction and maintenance of collecting systems for urban wastewater, the prevention of leaks and the limitation of pollution from urban wastewater into, for instance, ocean, rivers or lakes due to storm water overflows. In addition, Sweden has not provided sufficient evidence to demonstrate that its use of a different unit of measurement for discharges corresponds to the requirements of the directive. The Commission sent a [letter of formal notice](#) to Sweden in May 2020. However, after assessing its reply, the Commission concluded that Sweden still does not comply with the above-mentioned obligations. Therefore, the Commission has decided to issue a reasoned opinion to Sweden, which now has two months to respond and take the necessary measures. Otherwise, the Commission may decide to refer the case to the Court of Justice of the European Union.

Commission calls on Portugal to monitor and prevent bycatch of cetaceans in fishing activities

Today, the European Commission decided to send a reasoned opinion to **Portugal** ([INFR\(2020\)4038](#)) for failing to implement the measures required under the Habitats Directive ([Council Directive 92/43/EEC](#)) to monitor and prevent bycatch of cetaceans in fishing activities. Bycatch is the incidental capture of non-targeted species in fishing activities. The Habitats Directive requires Member States to monitor the incidental capture and killing of strictly protected species and to ensure that it does not

have a significant negative impact on the species concerned. Member States must also take appropriate steps to avoid significant disturbance of species protected in [Natura 2000 sites](#) designated under the Habitats Directive and the Birds Directive ([Directive 2009/147/EC](#)). Portugal has not established an effective system to monitor the bycatch of species, such as the bottlenose dolphin (*Tursiops truncatus*), the common dolphin (*Delphinus delphis*) and the harbour porpoise (*Phocoena phocoena*) – all protected under the Habitats Directive. Portugal has also failed to carry out further research and to take conservation measures to ensure that their incidental capture and killing does not have a significant negative impact. Furthermore, Portugal did not take appropriate steps to avoid significant disturbance, due to risk of bycatch, in the Natura 2000 sites designated for their protection. The Commission sent a [letter of formal notice](#) to Portugal in November 2023. However, after assessing its reply, the Commission concluded that, despite the adoption of some national measures, Portugal still does not comply with the above-mentioned obligations. Therefore, the Commission has decided to issue a reasoned opinion to Portugal, which now has two months to respond and take the necessary measures. Otherwise, the Commission may decide to refer the case to the Court of Justice of the European Union.

Commission calls on Bulgaria, Czechia, Spain, Cyprus, Luxembourg, Poland and Romania to notify transposition of the Directive on waste electrical and electronic equipment

Today, the European Commission decided to send a reasoned opinion to **Bulgaria** ([INFR\(2025\)0301](#)), **Czechia** ([INFR\(2025\)0304](#)), **Spain** ([INFR\(2025\)0321](#)), **Cyprus** ([INFR\(2025\)0303](#)), **Luxembourg** ([INFR\(2025\)0341](#)), **Poland** ([INFR\(2025\)0353](#)) and **Romania** ([INFR\(2025\)0360](#)) for failing to notify measures fully transposing the Waste Electrical and Electronic Equipment (WEEE) Directive ([Directive 2012/19/EU](#) as amended by [Directive 2024/884/EU](#)) into their national law. Member States had until 9 October 2025 to transpose the Directive. The WEEE Directive aims to protect the environment and human health by prioritising the prevention of WEEE generation, and promoting the reuse, recycling and recovery of WEEE and improving efficient resource use. Due to the [judgment](#) of 25 January 2022 of the Court of Justice of the European Union (CJEU), Directive 2012/19/EU had to be amended to ensure that costs relating to the management of waste from photovoltaic panels are to be borne by producers in all Member States, including in relation to products which the producers had already placed on the market prior to the entry into force of Directive 2012/19/EU. To ensure legal certainty, the amending Directive clarifies that Directive 2012/19/EU does not apply to photovoltaic panels placed on the market between 13 August 2005 and 13 August 2012 or to open-scope electrical and electronic equipment placed on the market between 13 August 2005 and 15 August 2018. Full transposition of the amended EU rules is key to ensure legal certainty and clarify responsibility for paying certain waste management and disposal costs, bringing the national legislation into line with the CJEU judgement. The Commission sent a letter of formal notice to Bulgaria, Czechia, Spain, Cyprus, Luxembourg, Poland and Romania in November 2025. The Member States have still failed to notify measures that fully transpose the amending Directive. Therefore, the Commission has decided to issue a reasoned opinion to these seven Member States, which now have two months to respond and take the necessary measures. Otherwise, the Commission may decide to refer the case to the Court of Justice of the European Union.

Referrals to the Court of Justice

Commission decides to refer Finland to the Court of Justice of the European Union for failing to align its rules with the Seveso III Directive

Today, the European Commission decided to refer **Finland** ([INFR\(2020\)2218](#)) to the Court of Justice of the European Union for failing to align its rules with the Seveso III Directive ([Directive 2012/18/EU](#)). The Directive aims to prevent major accidents (for instance, major emissions, fires, or explosions) involving dangerous substances, especially chemicals, and to limit their negative impact on human health and the environment. It applies to around 11,000 industrial installations in the European Union, for instance in the chemical and petrochemical industry, as well as fuel wholesale and storage sectors. Finland still has not correctly transposed the Directive in particular with regard to inspections, access to information for public, and access to justice. These are important matters impacting effectiveness of national enforcement and giving rights to citizens. In particular, where reports or inventories of dangerous substances include confidential or sensitive information – for instance related to public security or national defence – Finland's national rules do not enable Finnish national authorities to disclose other non-sensitive or non-confidential parts of those reports or inventories. Furthermore, Finland's national rules do not ensure that, where possible, inspections of establishments are coordinated and combined with other inspections under Union legislation. This can

lead to fragmented oversight and less efficient enforcement. The Commission sent a [letter of formal notice](#) to Finland in July 2020 and a [reasoned opinion](#) in December 2025. The Commission considers that efforts by the Finnish authorities to take the steps necessary to amend the national legislation have been insufficient and is therefore referring Finland to the Court of Justice of the European Union. More information is in the [press release](#).

Commission decides to refer Greece and Cyprus to the Court of Justice of the European Union for failing to ensure adequate treatment of waste

Today, the European Commission decided to refer **Greece** ([INFR\(2021\)2166](#)) and **Cyprus** ([INFR\(2021\)2217](#)) to the Court of Justice of the European Union for failing to correctly apply the Landfill Directive ([Directive 1999/31/EC](#)) and the Waste Framework Directive ([Directive 2008/98/EC](#)). The Commission sent a [letter of formal notice](#) in November 2021 and a [reasoned opinion](#) in December 2024 to Greece regarding shortcomings in 84 landfills, but also regarding Greece's failure to establish an integrated and adequate network of waste management installations, considering the best available techniques. Having assessed the reply submitted by the Greek authorities and the information available, it appears that three landfills were closed. Out of the remaining 81 landfills, the Commission has concluded that 66 landfills are non-compliant (81%). The Commission sent a [letter of formal notice](#) in December 2021 and a [reasoned opinion](#) in December 2024 to Cyprus regarding the failure to ensure that waste is subject to an adequate treatment before being landfilled but also regarding Cyprus' failure to establish an integrated and adequate network of waste management installations, considering the best available techniques. Having assessed the reply submitted by the Cypriot authorities and the information available, the Commission has concluded that 21% of the waste produced in Cyprus is landfilled without prior treatment. The Commission has also concluded that, in both countries, the capacity of installations for treatment of waste before landfilling is insufficient for treating mixed municipal waste. The Commission considers that efforts by the Greek and Cypriot authorities to address the shortcomings have been insufficient and is therefore referring Greece and Cyprus to the Court of Justice of the European Union. More information is in the [press release](#).

2. Internal Market, Industry, Entrepreneurship and SMEs *

(For more information: Siobhan McGarry – Tel.: +32 2 296 47 98; Rüya Perincek – Tel.: +32 460 76 25 10)

Letter of formal notice

Commission decides to open infringement procedure against France for restricting free access to French mandatory standards

The European Commission decided to open an infringement procedure by sending a letter of formal notice to **France** ([INFR\(2026\)4017](#)) for failing to ensure that all businesses in the EU have non-discriminatory access to standards made mandatory by French law. Under French law, mandatory standards must be available for free consultation on the website of AFNOR, the French national organization responsible for developing and coordinating voluntary standards, certification, and training. However, only businesses located in France can access these standards free of charge, while businesses in other Member States must pay for access. The Commission considers that this difference in treatment creates an additional cost for businesses located in other Member States that need to consult these standards to comply with legally binding requirements in France. This may hinder the ability of economic operators from other Member States to sell goods on the French market or provide services in France. The Commission finds that this practice breaches the rights of free movement of goods and the freedom to provide services as enshrined in Articles [34](#) and [56 TFEU](#) respectively and is contrary to Article 16 of the Services Directive ([Directive 2006/123/EC](#)). The Commission is therefore sending a letter of formal notice to France, which now has two months to respond and address the shortcomings raised by the Commission. In the absence of a satisfactory response, the Commission may decide to issue a reasoned opinion.

Reasoned opinions

Commission calls on Denmark to notify transposition of the Directive on reducing reporting requirements for economic operators

Today, the European Commission decided to issue a reasoned opinion to **Denmark** ([INFR\(2026\)0043](#))

for failure to notify the measures transposing the obligations of [Directive \(EU\) 2024/2839](#). The reasoned opinion follows the [letter of formal notice](#) from January this year. The Directive concerned reduces reporting requirements for Member States and economic operators in several fields. For economic operators, the reporting requirements concern noise emissions by equipment for use outdoors. The Directive specifies with which reporting obligations economic operators no longer need to comply. Therefore, the Commission has decided to issue a reasoned opinion to Denmark, which now has two months to respond and take the necessary measures. Otherwise, the Commission may decide to refer the case to the Court of Justice of the European Union.

Commission calls on Hungary to comply with EU rules when awarding motorway concession contracts

Today, the European Commission decided to issue a reasoned opinion to **Hungary** ([INFR\(2024\)4006](#)) for failing to comply with EU rules on public procurement ([Directive 2014/24/EU](#)) and concessions ([Directive 2014/23/EU](#)) when awarding a contract for the construction, operation, and maintenance of its motorway network. The reasoned opinion follows the [letter of formal notice](#) from April 2024 and [additional letter of formal notice](#) from July last year. These rules aim to ensure the equal treatment of economic operators and the opening-up of public procurements and concessions to competition. It considers that Hungary's 35 year-long contract for the construction, operation and maintenance of the motorway network failed to transfer a sufficient level of operating risk to the contractor - a key feature that distinguishes a concession from a public contract. The Commission therefore concluded that the contract was misclassified as a concession instead of a public contract, breaching the principles of equal treatment and transparency. Additionally, the modifications of the contract in April and December 2023 violated EU public procurement rules. Therefore, the Commission has decided to issue a reasoned opinion to Hungary, which now has two months to respond and take the necessary measures. Otherwise, the Commission may decide to refer the case to the Court of Justice of the European Union.

[Letters of formal notice post-judgment \(Article 260 TFEU\)](#)

Commission calls on Greece to comply with Court judgment on late payments

The European Commission decided to send a letter of formal notice to **Greece** ([INFR\(2019\)2298](#)) for failing to comply with the judgment of the Court of Justice of 19 June 2025 ([Case C-317/24](#)), which found that Greece had breached the Late Payment Directive ([Directive 2011/7/EU](#)) due to excessive payment delays by its public hospitals to suppliers. Under the Directive, public healthcare entities must pay suppliers within a maximum of 60 calendar days. However, Greek public hospitals continue to exceed this deadline significantly. In June 2026, overdue supplier invoices reached €1.3 billion, more than three times the 2019 level. These delays place a significant financial burden on suppliers, most of which are SMEs, and undermine their ability to operate, grow, and invest. Greece now has two months to reply and address the shortcomings. If the Commission considers the response insufficient, it may decide to refer the case back to the Court of Justice and request financial penalties.

Commission urges Greece to fully transpose EU proportionality rules for regulated professions

The European Commission decided to send a letter of formal notice to **Greece** ([INFR\(2021\)2200](#)) for failing to fully comply with the judgment of the Court of Justice of the European Union in [Case C-518/24](#) from 20 November 2025 regarding the transposition of [Directive \(EU\) 2018/958](#) on a proportionality test before adoption of new regulation of professions. The aim of the Directive is to ensure that all competent bodies, including parliaments and professional associations, carry out a proportionality assessment before introducing or amending rules restricting access to or pursuit of regulated professions. The Court of Justice found that Greece had failed to ensure that national measures transposing the Directive covered all types of organisations competent to make or propose professional regulations, including parliamentary initiatives and amendments, and to ensure review of such provisions over time. Following the judgment, the amendments to national law adopted by Greece do not fully address the requirements of the Directive, as parliamentary initiatives and amendments remain outside the scope of the proportionality assessment obligation. Greece now has two months to reply and address the shortcomings. If the Commission considers the response insufficient, it may decide to refer the case back to the Court of Justice and request financial penalties.

3. Migration and Home Affairs

(For more information: Markus Lammert – Tel.: +32 2 296 75 33; Elettra Di Massa – Tel.: +32 2 298 21 61)

Reasoned opinions

Commission calls on Belgium, France and the Netherlands to fully transpose the EU Blue Card Directive

Today, the European Commission decided to send reasoned opinion to **Belgium** ([INFR\(2024\)0004](#)), **France** ([INFR\(2024\)0058](#)) and **the Netherlands** ([INFR\(2024\)0102](#)) for failing to fully transpose the EU Blue Card Directive on the conditions of entry and residence of third-country nationals for the purpose of highly qualified employment ([Directive \(EU\) 2021/1883](#)). The EU Blue Card Directive establishes the entry and residence conditions for highly qualified non-EU nationals coming to live and work in the EU and introduces more efficient rules for attracting highly skilled workers to the EU. These rules include flexible admission conditions, enhanced rights and the possibility to move and work more easily between EU Member States. Belgium, France and the Netherlands have only notified partial transposition of the Directive, therefore limiting the possibilities offered to highly qualified non-EU nationals by the EU Blue Card Directive. Therefore, the Commission has decided to issue a reasoned opinion to these Member States, which now have two months to respond and take the necessary measures. Otherwise, the Commission may decide to refer the cases to the Court of Justice of the European Union with a request to impose financial penalties.

4. Justice

(For more information: Markus Lammert – Tel.: +32 2 296 75 33; Antoine Lomba- Tel.: +32 2 299 32 33)

(For more information on Equality: Eva Hrnčirova - Tel.: +32 2 298 84 33; Anna Gray – Tel.: +32 2 298 08 73)

Reasoned opinions

Commission urges Member States to fully transpose the Directive on credit agreements for consumers

Today, the European Commission decided to send a reasoned opinion to **Bulgaria** ([INFR\(2026\)0017](#)), **Czechia** ([INFR\(2026\)0031](#)), **Estonia** ([INFR\(2026\)0045](#)), **Ireland** ([INFR\(2026\)0079](#)), **Spain** ([INFR\(2026\)0059](#)), **France** ([INFR\(2026\)0069](#)), **Croatia** ([INFR\(2026\)0073](#)), **Cyprus** ([INFR\(2026\)0023](#)), **Latvia** ([INFR\(2026\)0096](#)), **Luxembourg** ([INFR\(2026\)0088](#)), **Malta** ([INFR\(2026\)0100](#)), **the Netherlands** ([INFR\(2026\)0108](#)), **Poland** ([INFR\(2026\)0114](#)), **Portugal** ([INFR\(2026\)0122](#)), **Romania** ([INFR\(2026\)0131](#)) and **Slovenia** ([INFR\(2026\)0141](#)) for failing to communicate complete transposition of the Directive on credit agreements for consumers ([Directive \(EU\) 2023/2225](#)). The Directive aims to enhance consumer protection in the credit market, ensuring transparency and fairness in credit transactions across Member States. Member States had until 20 November 2025 to transpose the Directive into their national law. In [January 2026](#), the Commission decided to open infringement proceedings by issuing letters of formal notice to 23 Member States for failing to communicate complete transposition measures. To date, the 16 Member States mentioned still fail to communicate complete transposition of the Directive to the Commission. Therefore, the Commission has decided to issue reasoned opinions to these 16 Member States, which now have two months to respond and take the necessary measures. Otherwise, the Commission may decide to refer the cases to the Court of Justice of the European Union with a request to impose financial penalties.

Commission calls on Hungary to correctly transpose the rules on legal aid for suspects and accused persons in criminal proceedings

Today, the European Commission decided to send a reasoned opinion to **Hungary** ([INFR\(2025\)2163](#)) for failing to correctly transpose EU rules on legal aid in criminal proceedings ([Directive \(EU\) 2016/1919](#)). EU law ensures that the basic rights of suspects and accused persons are protected. Common minimum standards are necessary for judicial decisions taken by one Member State to be recognised by others. The Commission found that in Hungary not all persons covered by the Directive have access to legal aid, and that the granting of legal aid depends on a

request by the individual. Additionally, while Hungary applies a system of mandatory defence, this system does not cover all scenarios set out by the Directive, and it does not ensure that legal aid is granted without undue delay. In [November 2025](#), the Commission decided to open an infringement procedure against Hungary by sending a letter of formal notice. The issues identified still remain. Therefore, the Commission has decided to issue a reasoned opinion to Hungary, which now has two months to respond and take the necessary measures. Otherwise, the Commission may decide to refer Hungary to the Court of Justice of the European Union.

Commission calls on Ireland to fully transpose the Directive criminalising the violation of Union restrictive measures

Today, the European Commission decided to send a reasoned opinion to **Ireland** ([INFR\(2025\)0227](#)) for failing to notify the Commission of any national measures transposing the Directive on the criminalisation of the violation of Union restrictive measures ([Directive \(EU\) 2024/1226](#)) into national law. The Directive establishes common rules harmonising the definition of criminal offences and penalties for the violation of Union restrictive measures. It seeks to prevent the circumvention of Union restrictive measures, including those adopted following the Russian aggression against Ukraine. Harmonising national criminal law in this field facilitates the investigation and prosecution of violations of Union restrictive measures in all Member States, making them more effective. Member States had until 20 May 2025 to transpose the Directive into their national law. In [July 2025](#), the Commission decided to open an infringement procedure by sending a letter of formal notice to several Member States, for failing to communicate full transposition measures of the Directive. To date, Ireland has still not communicated measures transposing the Directive. Therefore, the Commission has decided to issue a reasoned opinion to Ireland, which now has two months to respond and take the necessary measures. Otherwise, the Commission may decide to refer Ireland to the Court of Justice of the European Union.

Referral to the Court of Justice

Commission decides to refer Spain to the Court of Justice of the European Union for failing to comply with EU rules on State liability for breaches of Union law

Today, the European Commission decided to refer **Spain** ([INFR\(2017\)4004](#)) to the Court of Justice of the European Union for failing to comply with a [judgment](#) of the Court. In June 2022, the Court found that Spanish rules made it too difficult for individuals to receive compensation for damages caused by the State when adopting legislation contrary to Union law. As such, Spain failed to fulfil its obligations under Union law, and breached the principle of effectiveness. In 2015, the Commission received complaints arguing that parts of the Spanish legislation that governs the public sector and the administrative procedure of the civil service did not comply with EU law. The Commission opened an infringement procedure in [June 2017](#). Spain did not adopt any amendments to its legislation, even following the Commission's reasoned opinion of [January 2018](#). The Commission therefore decided to refer the case to the Court of Justice in [November 2019](#). In its [judgment](#) of 28 June 2022, the Court confirmed the Commission's position that Spain had violated Union law. As Spain did not implement the judgment of the Court in its legal order, the Commission sent a letter of formal notice in [December 2025](#). Following further exchanges with the Spanish authorities, the judgment has still not been implemented, and a draft law amending the contested legislative provisions remains pending before the Spanish Parliament. The Commission is therefore referring Spain again to the Court of Justice. More information is in the [press release](#).

5. Energy and climate

(For more information: Anna-Kaisa Itkonen – Tel.: +32 2 295 75 01; Cristiana Marchitelli – Tel: +32 2 298 94 07; Ana Crespo Parrondo – Tel.: +32 2 298 13 25)

Letters of formal notice and additional letters of formal notice

Commission calls on Belgium, Spain and France to notify their electricity Risk-Preparedness Plans

The European Commission decided to open infringement procedures by sending a letter of formal notice to **Spain** ([INFR\(2026\)2191](#)) and **France** ([INFR\(2026\)2192](#)) and decided to send an additional letter of formal notice to **Belgium** ([INFR\(2026\)2036](#)) regarding the missing notification of their risk-preparedness plan in accordance with the [Regulation \(EU\) 2019/941](#) on-risk preparedness in the

electricity sector. The risk-preparedness plan is an important tool to ensure maximum preparedness in the electricity sector and shall be established to avoid a disruption of electricity supply or mitigate its effects, should it occur. It shall set out all measures that are planned or taken to prevent, prepare for and mitigate electricity crises. Electricity crises can occur for many reasons, for example due to extreme weather conditions, malicious attacks or fuel shortages, among other. Where crisis situations occur, they often have a cross-border effect. Large-scale incidents, such as cold spells, heat waves or cyberattacks can affect several EU countries at the same time. Risk-preparedness plans are based on regional and national crisis scenarios, ensuring that in the event of a crisis, electricity is directed to where it is needed most. Member States must adopt and publish their updated risk-preparedness plans every four years, counting from the first one due by 5 January 2022. Belgium, France and Spain have not notified their updated risk-preparedness plan due by 5 January 2026. The Commission now asks Belgium, France and Spain to comply with the Regulation without delay. Belgium had already failed to notify the previous amended risk-preparedness plan and to submit the draft risk-preparedness plan for consultation, for which it received a letter of formal notice in [March 2026](#). Member States have two months to respond to the letter of formal notice. In the absence of a satisfactory response, the Commission may decide to issue a reasoned opinion.

Commission calls on Romania to ensure effective compliance with the EU rules on ecodesign and energy labelling of products

The European Commission decided to send an additional letter of formal notice to **Romania** ([INFR\(2025\)2074](#)) for failing to ensure effective compliance with the EU rules on ecodesign and energy labelling of products. Member States are responsible for ensuring effective surveillance of their markets and ensuring that only products complying with all the applicable rules are placed on the market. In practice, this means checking that products satisfy the minimum energy use requirements set under ecodesign regulations, and that the product has a correct energy label providing consumers with the information they need for purchase decisions. The Commission considers that Romania did not fully meet its obligations under the Market Surveillance Regulation ([Regulation \(EU\) 2019/1020](#)) to ensure effective market surveillance as regards the EU rules on ecodesign and energy labelling of products. Therefore, it sent a letter of formal notice to Romania in [July 2025](#). Although the Romanian authorities have committed themselves to adopting new legislation to designate the market surveillance authorities, this has not yet happened, and therefore the Commission now decided to send an additional letter of formal notice to clarify the legal requirements of this specific aspect of the case. Romania now has two months to respond and take the necessary measures, otherwise the Commission may decide to issue a reasoned opinion.

Reasoned opinions

Commission urges Greece, Spain, Italy and Malta to fully transpose EU rules on energy efficiency

Today, the European Commission decided to send a reasoned opinion to **Greece** ([INFR\(2025\)0315](#)), **Spain** ([INFR\(2025\)0319](#)), **Italy** ([INFR\(2025\)0334](#)), **Malta** ([INFR\(2025\)0345](#)) for failing to fully transpose into national law the provisions of the recast Energy Efficiency Directive ([Directive \(EU\) 2023/1791](#)). The revised Directive was adopted in 2023, replacing the previous [Directive 2012/27/EU](#). Member States had to notify its transposition measures by 11 October 2025, except for some specific provisions which had specific deadlines. The recast Directive introduces more ambitious measures for energy efficiency to help reduce overall energy consumption in the EU, thus contributing to the EU's climate ambition and enhance energy security and affordability. It sets targets for energy consumption and energy savings, with a special focus on measures to alleviate energy poverty, as well as targets for consumption of public authorities and renovation of buildings owned by public authorities. It also introduces the 'energy efficiency first principle' as a fundamental principle of EU energy policy, requiring energy efficiency to be considered by EU countries in all relevant policy and major investment decisions taken in the energy and non-energy sectors. In November 2025, the Commission sent letters of formal notice to 26 Member States for failing to fully transpose the Directive into national law. After having examined the transposition measures and the explanations provided by Greece, Spain, Italy and Malta, the Commission has concluded that these Member States have not yet fully transposed the Directive. Therefore, the Commission has decided to issue reasoned opinions indicating which specific provisions are considered not transposed. The four Member States have now two months to respond and complete the transposition. Otherwise, the Commission may decide to refer the case to the Court of Justice of the European Union with a request to impose financial sanctions.

Commission urges Croatia to transpose the reinforced EU rules promoting renewable energy

Today, the European Commission decided to send a reasoned opinion to **Croatia** ([INFR\(2025\)0222](#)) for failing to fully transpose the provisions of the revised Renewable Energy Directive ([Directive \(EU\) 2023/2413](#)) covered by its second transposition deadline into national law. The Directive was adopted in 2023, and Member States had to notify its transposition by 21 May 2025, except for some provisions related to permitting, which were already due by 1 July 2024. The new rules aim to accelerate the deployment of renewable energy in all sectors of the economy, not only in the power sector, but also and especially in those sectors where progress is more difficult - for instance heating and cooling, buildings, transport and industry, where we have also set new or strengthened targets. They set horizontal and cross-cutting measures to promote the deployment of renewables, such as the strengthening of guarantees of origin, facilitating energy system integration through the promotion of electrification and renewable hydrogen, and safeguards to ensure a more sustainable bioenergy production. The implementation of the legislation is instrumental to accelerate the roll-out of homegrown clean energy, to further reduce greenhouse gas emissions (GHG) in the energy sector - which currently contributes over 75% of total GHG emissions in the Union-, and to strengthen energy security. It will also contribute to lowering energy prices and enhancing the competitiveness of the EU economy. In July 2025, the Commission sent letters of formal notice to 26 Member States for failing to fully transpose the Directive into national law. After having examined the transposition measures and the explanations provided by Croatia, the Commission has concluded that Croatia has not yet fully transposed the Directive. Therefore, the Commission has decided to issue a reasoned opinion to Croatia indicating which provisions are considered as not transposed. Croatia now has two months to respond and take the necessary measures. Otherwise, the Commission may decide to refer the case to the Court of Justice of the European Union with a request to impose financial sanctions.

Commission urges Poland and Romania to fully comply with EU rules on the safety of offshore oil and gas operations

Today, the European Commission decided to send a reasoned opinion to **Poland** ([INFR \(2021\)2151](#)) and **Romania** ([INFR\(2021\)2150](#)) requesting the two Member States to fully comply with EU rules on the safety of offshore oil and gas operations ([Directive 2013/30/EU](#)). The Directive aims to reduce the occurrence of major accidents in offshore oil and gas operations and to limit their consequences for human life, the marine environment, and coastal economies. The Commission considers that Poland and Romania do not fully meet some of their obligations under the EU rules to prevent and respond to accidents on offshore installations for gas and oil operations. Given the EU's energy demand, these offshore operations help ensure a secure supply of energy. EU rules on offshore safety are important because an accident in one country can cause environmental and economic damage to its neighbours as well. Following the letters of formal notice in [September 2021](#), the Member States now have two months to reply and address the shortcomings identified by the Commission. In the absence of a satisfactory response, the Commission may decide to refer Poland and Romania to the Court of Justice of the European Union.

Commission calls on Member States to submit their draft National Building Renovation Plans

Today, the European Commission decided to send a reasoned opinion to **Belgium** ([INFR\(2026\)2014](#)), **Czechia** ([INFR\(2026\)2016](#)), **Ireland** ([INFR\(2026\)2023](#)), **Italy** ([INFR\(2026\)2024](#)), **Luxembourg** ([INFR\(2026\)2025](#)), **Hungary** ([INFR\(2026\)2022](#)), **Malta** ([INFR\(2026\)2027](#)), **Poland** ([INFR\(2026\)2029](#)) and **Slovakia** ([INFR\(2026\)2032](#)) for continued failure to submit their draft National Building Renovation Plan (NBRP) to the Commission by the deadline of 31 December 2025. These plans are required under the [Energy Performance of Buildings Directive](#). Following the letters of [formal notice sent in March 2026](#) for not having submitted their draft National Building Renovation Plan (NBRP) to the Commission by the deadline of 31 December 2025, these 9 Member States have still not submitted their draft NBRP. The NBRPs are an essential strategic tool for Member States to transform their building stock into a high-performing, energy-efficient, decarbonised asset by 2050. By creating predictable renovation pipelines and clear long-term trajectories, these plans will underpin full implementation of the recast [Directive \(EU\) 2024/1275](#) on the energy performance of buildings and give the necessary investment stability and predictability. These plans are essential to improve buildings' energy performance and thus contribute to energy independence, competitiveness, affordable housing, lower energy bills and enhanced living conditions. Thus, the timely submission of these draft Plans will be essential in driving our collective efforts towards building decarbonisation. The Commission now asks the Member States concerned to submit their draft Plans without further

delay. These Member States now have two months to respond to the reasoned opinions and submit their draft NBRPs or the Commission may decide to refer the case to the Court of Justice of the European Union.

Commission urges Austria and Romania to submit missing information in their integrated national energy and climate reports

Today the European Commission decided to send a reasoned opinion to **Austria** ([INFR\(2026\)2034](#)) and **Romania** ([INFR\(2026\)2033](#)) that still have not submitted all the information required in their integrated national energy and climate progress reports (NECPRs) that were due by 15 March 2025. Pursuant to Article 17 of the Regulation on the Governance of the Energy Union and Climate Action ([Regulation \(EU\) 2018/1999](#)), Member States are obliged to report every two years to the Commission on progress achieved towards the implementation of their integrated [national energy and climate plans](#) (NECPs) through the NECPRs. By 15 March 2025, Member States were due to report their progress towards implementing their NECPs for the period 2021-2030, and notably towards their objectives, targets and contributions across the five dimensions of the Energy Union (decarbonisation, energy efficiency, internal energy market, energy security, research innovation and competitiveness). The precise requirements of the content of these reports are set in various Articles of Regulation (EU) 2018/1999 and sectoral directives. The submission of the NECPRs is considered complete when all the required information is provided using the dedicated e-Platform. The NECPRs are crucial as they demonstrate how the national governments are delivering on their energy and climate objectives expressed in their integrated national energy and climate plans. They provide transparency and ensure better accountability by making this information public and comparable between Member States. Moreover, they are essential for the Commission to track the Union's progress towards its common targets. Given that Austria and Romania have not complied with this obligation and still have not submitted all the required information, following the letters of [formal notice sent in March 2026](#), the Commission now decided to issue reasoned opinions to these two Member States. These Member States now have two months to respond and take the necessary measures. Otherwise, the Commission may decide to refer cases to the Court of Justice of the European Union.

Referrals to the Court of Justice

Commission decides to refer Hungary to the Court of Justice of the European Union to ensure compliance with rules on intra-EU investor-State arbitration

Today, the European Commission decides to refer **Hungary** ([INFR\(2025\)2204](#)) to the Court of Justice of the European Union for failing to prevent violations of the prohibition on intra-EU investor-State arbitration, as established by the case-law of the Court of Justice of the European Union. In its judgment in [Case C-741/19](#), ("the Komstroy judgment"), the Court of Justice held that [Articles 267 and 344 TFEU](#) prevent an international agreement, such as [Article 26 of the Energy Charter Treaty](#), from allowing an investor from one Member State to bring a dispute concerning investments in another Member State before an arbitral tribunal whose jurisdiction that Member State has agreed to accept. Hungary has, in fact, allowed State-controlled companies to circumvent obligations under EU law, including on investor-to-Member State arbitration. MOL, breached the prohibition of intra-EU investor State arbitration since MOL requested a third-country court to recognise and enforce an intra-EU investor-State arbitral award issued in its favour on the basis of Article 26 of the Energy Charter Treaty. The Commission sent a letter of formal notice to Hungary in December 2025, and the Reasoned opinion in April 2026. As the Commission considers that Hungary is still in breach of EU rules, it has decided to refer the cases to the Court of Justice of the European Union. More information is in the [press release](#).

Commission decides to refer Bulgaria to the Court of Justice of the European Union for failing to fully transpose the Directive on common rules for the internal market for electricity

Today, the European Commission decided to refer **Bulgaria** ([INFR\(2021\)0015](#)) to the Court of Justice of the European Union (CJEU) for failing to fully transpose [Directive \(EU\) 2019/944](#) on common rules for the internal market for electricity, amending Directive 2012/27/EU. Directive (EU) 2019/944 lays down key rules on the organisation and functioning of the EU electricity sector with a view to creating integrated, competitive, consumer-centered, flexible, fair and transparent electricity markets across the EU. It also aims to ensure high levels of consumer protection and to enable all consumers to participate actively in the energy market. The deadline for Member States to transpose the Directive into national law was 31 December 2020. In February 2021, the Commission sent a letter of formal notice to Bulgaria. It subsequently sent a reasoned opinion to Bulgaria in April 2023, after concluding

that not all provisions of the Directive had been transposed into national law. Having examined the replies submitted by Bulgaria and the national transposition measures notified, the Commission considers that Bulgaria has still not fully transposed the Directive. The decision is part of the Commission's enforcement efforts to remove barriers in the Single Market in 11 focus areas, as announced in the [Communication "A simpler, clearer and better enforced EU Rulebook"](#) (COM(2026) 380 final, Annex II). The Commission has therefore decided to refer this case to the Court of Justice of the European Union with a request for financial sanctions. More information is in the [press release](#).

6. Taxation

(For more information: Louise Bogey – Tel.: +32 2 296 97 76; Thérèse Lerebours – Tel.: +32 2 296 33 03)

(For more information on customs: Olof Gill – Tel.: +32 2 296 59 66; Paula Clara Ritter-Moschütz – Tel.: +32 2 296 40 83)

Letters of formal notice

Commission calls on Germany, Estonia, Latvia, Lithuania and Hungary to enact effective, proportionate and dissuasive penalties applicable to violations of rules set by the Directive on Administrative Cooperation in tax matters

The European Commission decided to open infringement procedures by sending a letter of formal notice to **Germany** ([INFR\(2026\)2156](#)), **Estonia** ([INFR\(2026\)2157](#)), **Latvia** ([INFR\(2026\)2160](#)), **Lithuania** ([INFR\(2026\)2159](#)) and **Hungary** ([INFR\(2026\)2158](#)) for failing to lay down rules on effective, proportionate and dissuasive penalties applicable to violations of rules set by the Directive on Administrative Cooperation in tax matters (DAC) ([Council Directive 2011/16/EU](#)). German, Estonian, Latvian, Lithuanian and Hungarian legislation establish a level of penalties which are manifestly too low to deter non-compliance by multinational enterprise groups or by individuals linked to aggressive tax planning through cross-border tax arrangements. In addition, the penalty frameworks often do not permit taking sufficient account of the gravity, scale or repetition of the violations of DAC rules, the offender's economic capacity, or the economic incentives linked to non-compliance for taxpayers involved. Overall, those shortcomings are liable to impair the quality, completeness and reliability of the information sourced via DAC for the purpose of exchanges between tax authorities. Ineffective penalty frameworks weaken the functioning of administrative cooperation in taxation within the Union. The Commission's enforcement action follows-up on calls by the European Court of Auditors (ECA) in its special reports [03/2021](#) on exchanging tax information in the EU and [27/2024](#) on combatting harmful tax regimes and corporate tax avoidance which have emphasized the necessity for effective compliance mechanisms across Member States. The Commission is therefore sending a letter of formal notice to Germany, Estonia, Latvia, Lithuania and Hungary, which now have two months to respond and address the shortcomings raised by the Commission. In the absence of a satisfactory response, the Commission may decide to issue a reasoned opinion.

Commission calls on Hungary to end discriminatory tax treatment of interest income on EU and EEA government bonds

The European Commission decided to open an infringement procedure by sending a letter of formal notice to **Hungary** ([INFR\(2026\)2155](#)) for failing to bring its legislation on the tax treatment of income arising from government bonds in line with the free movement of capital legislation (Article 63 TFEU and Article 40 EEA Agreement). Under Hungarian tax legislation, interest income derived from government bonds issued by the Hungarian State and marketed to the retail public as the target investor market is tax exempt. The same type of income is also out of the scope of the social contribution tax. By contrast, income arising from bonds issued or guaranteed by other EU Member States and EEA countries are subject to the standard taxation. This difference in tax treatment discourages Hungarian residents from investing in bonds issued or guaranteed by other EU Member States or EEA countries. The decision is part of the Commission's enforcement efforts to remove barriers in the single market in 11 focus areas, as announced in the Communication ["A simpler, clearer and better enforced EU Rulebook"](#) (COM(2026) 380 final, Annex II) and under the [2025 Communication Savings and Investments Union – A Strategy to Foster Citizens' Wealth and Economic Competitiveness in the EU](#) (COM(2025) 124 final). The Commission is therefore sending a letter of formal notice to Hungary, which now has two months to respond to the concerns raised by the

Commission and to address the identified shortcomings. In the absence of a satisfactory response, the Commission may decide to issue a reasoned opinion.

Commission calls on Romania to end discriminatory tax treatment of capital gains derived from the transfer of securities and other financial instruments where the financial intermediary is not established in Romania

The European Commission decided to open an infringement procedure by sending a letter of formal notice to **Romania** ([INFR\(2026\)2173](#)) for failing to bring its legislation on the tax treatment of capital gains derived from securities and other financial instruments in line with the freedom to provide services rules (Article 56 TFEU and Article 36 EEA). Under Romanian legislation, capital gains derived from the transfer of securities and other financial instruments where the financial intermediary handling the transaction is not established in Romania are subject to higher tax rates than those established in Romania. These conditions make safekeeping and administration services provided by financial intermediaries established in other EU Member States or EEA countries without a permanent establishment in Romania less attractive and discourage investors from using such financial intermediaries. The decision is part of the Commission's enforcement efforts to remove barriers in the single market in 11 focus areas, as announced in the Communication "[A simpler, clearer and better enforced EU Rulebook](#)" (COM(2026) 380 final, Annex II) and the [2025 Communication Savings and Investments Union – A Strategy to Foster Citizens' Wealth and Economic Competitiveness in the EU](#) (COM(2025) 124 final). The Commission is therefore sending a letter of formal notice to Romania, which now has two months to respond and address the shortcomings raised by the Commission. In the absence of a satisfactory response, the Commission may decide to issue a reasoned opinion.

Commission calls on Italy to end discriminatory tax treatment of interest and other income from Italian bonds for certain non-resident investors

The European Commission decided to open an infringement procedure by sending a letter of formal notice to **Italy** ([INFR\(2026\)4015](#)) for failing to bring its legislation on the tax treatment of interest and other income from Italian bonds in line with the rules on freedom to provide services (Article 56 TFEU and Article 36 EEA). Under Italian tax legislation, interest and other income from Italian corporate and government bonds are generally subject to withholding tax. Certain non-resident investors may benefit from a tax exemption. This is only the case when the bonds are deposited with an Italian resident financial intermediary, the Italian permanent establishment of a non-resident intermediary or, in some cases, a non-resident intermediary that has appointed an Italian tax representative. These conditions make safekeeping and administration services provided by financial intermediaries established in other EU Member States or EEA countries without a permanent establishment in Italy less attractive than equivalent services provided by Italian financial intermediaries and discourage non-resident investors from using such financial intermediaries. The decision is part of the Commission's enforcement efforts to remove barriers in the single market in 11 focus areas, as announced in the Communication "[A simpler, clearer and better enforced EU Rulebook](#)" (COM(2026) 380 final, Annex II) and the [2025 Communication Savings and Investments Union – A Strategy to Foster Citizens' Wealth and Economic Competitiveness in the EU](#) (COM(2025) 124 final). The Commission is therefore sending a letter of formal notice to Italy, which now has two months to respond and address the shortcomings raised by the Commission. In the absence of a satisfactory response, the Commission may decide to issue a reasoned opinion.

Commission calls on Ireland to end discriminatory tax treatment of capital gains on EU and EEA government bonds

The European Commission decided to open an infringement procedure by sending a letter of formal notice to **Ireland** ([INFR\(2026\)4016](#)) for failing to bring its legislation on the tax treatment of capital gains arising from the disposal of government bonds in line with the rules on the free movement of capital (Article 63 TFEU and Article 40 EEA). Under Irish tax legislation, capital gains arising from the disposal of bonds issued or guaranteed by the Irish Government and certain Irish governmental entities are exempt from capital gains tax. By contrast, capital gains arising from the disposal of bonds issued or guaranteed by other EU Member States and EEA countries are subject to the standard capital gains tax rate of 33%. This difference in tax treatment discourages Irish residents from investing in bonds issued or guaranteed by other EU Member States or EEA countries. The decision is part of the Commission's enforcement efforts to remove barriers in the single market in 11 focus areas, as announced in the Communication "[A simpler, clearer and better enforced EU Rulebook](#)" (COM(2026) 380 final, Annex II) and under the [2025 Communication Savings and Investments Union – A Strategy to Foster Citizens' Wealth and Economic Competitiveness in the EU](#)

(COM(2025) 124 final). The Commission is therefore sending a letter of formal notice to Ireland, which now has two months to respond to the concerns raised by the Commission and to address the identified shortcomings. In the absence of a satisfactory response, the Commission may decide to issue a reasoned opinion.

Commission calls on Germany to correctly transpose and apply the VAT exemption for credit management and credit guarantee management services

The European Commission decided to open an infringement procedure by sending a letter of formal notice to **Germany** ([INFR\(2026\)4020](#)) for failing to correctly transpose and apply the VAT exemption laid down in Article 135(1)(b) and (c) of [Council Directive 2006/112/EC](#) on the common system of value added tax, the VAT Directive. These provisions require Member States to exempt from VAT, among other things, the management of credit by the person granting it and the management of credit guarantees by the person granting the credit. The Commission considers that the relevant provisions of German VAT law do not cover these services and that, as a result, certain services, notably those supplied by syndicate leaders in open syndicated loans, are being subjected to VAT contrary to EU law. The Commission is therefore sending a letter of formal notice to Germany, which has two months to respond and address the shortcomings raised by the Commission. In the absence of a satisfactory response, the Commission may decide to issue a reasoned opinion.

Commission calls on Belgium, Greece, France, Hungary, the Netherlands, Poland and Portugal to deploy all the functionalities of the Centralised Clearance for Import system

The European Commission decided to open infringement procedures by sending letter of formal notice to **Belgium** ([INFR\(2026\)2167](#)), **Greece** ([INFR\(2026\)2162](#)), **France** ([INFR\(2026\)2165](#)), **Hungary** ([INFR\(2026\)2164](#)), **the Netherlands** ([INFR\(2026\)2161](#)), **Poland** ([INFR\(2026\)2168](#)) and **Portugal** ([INFR\(2026\)2163](#)) for failing to meet their obligations to deploy the Centralised Clearance for Import system (CCI). Member States were meant to deploy the CCI system in two phases (phase I covers centralised clearance with standard customs declarations, among others, and phase II aims at implementing all the remaining functionalities) by 1 July 2024 and 2 June 2025, in line with the provisions of the Union Customs Code (UCC) ([Regulation No. \(EU\) 952/2013](#)) and the UCC Work Programme ([Commission Implementing Decision \(EU\) 2023/2879](#)). The implementation of CCI by all Member States is vital for EU customs and critical for ensuring the objectives of the customs reform. It transforms the 27 fragmented national customs administrations into a single, cohesive entity, allowing authorized businesses to lodge customs declarations in their home Member State, regardless of where the goods physically cross the EU border. The system ensures seamless electronic exchange of information between the customs offices involved, reducing the administrative burden for the Member States' customs administrations when processing the customs declaration for imports. In addition, CCI opens the market and reduces red tape and costs for economic operators, even allowing SMEs to scale up more easily. Member State failing to implement the CCI puts these goals at risk. The Commission is therefore sending a letter of formal notice to Belgium, Greece, France, Hungary, the Netherlands, Poland and Portugal, which now have two months to respond and address the shortcomings raised by the Commission. In the absence of a satisfactory response, the Commission may decide to issue a reasoned opinion.

Reasoned opinions

Commission calls on Czechia to finalise the implementation of the information exchange rules on administrative cooperation in the field of taxation

Today, the European Commission has decided to send a reasoned opinion to **Czechia** ([INFR\(2026\)0038](#)) for failing to fully transpose [Directive \(EU\) 2025/872](#), which amends the Directive on administrative cooperation in the field of taxation ([Directive 2011/16/EU](#)). The Directive requires Member States to standardise the collection of the top-up tax information return and to automatically exchange the information in that return. The top-up tax information return is part of the filing obligations laid down in [Directive \(EU\) 2022/2523](#) (Pillar 2 Directive) on ensuring a global minimum level of taxation for multinational enterprise groups and large-scale domestic groups in the Union. Czechia has so far not adopted or notified all national transposition measures, while tax authorities across the EU should be able to start exchanging information on multinational companies in the scope of the Pillar 2 Directive as from June 2026. In January 2026, the Commission sent [letters of formal notice](#) to the Member States for failing to fully implement the rules of the Directive. Therefore, the Commission has decided to issue a reasoned opinion to Czechia, which now has two months to respond and take the necessary measures. Otherwise, the Commission may decide to refer the case to the Court of Justice of the European Union with a request for financial sanctions.

Commission calls on Greece, France and Portugal to deploy customs electronic systems

Today, the European Commission decided to send a reasoned opinion to **Greece** ([INFR\(2025\)2019](#)) for failing to deploy the National Import System (NIS), as well as a reasoned opinion to **France** ([INFR\(2025\)2060](#)) and a letter of formal notice to **Portugal** ([INFR\(2026\)2134](#)) for failing to meet their obligations to deploy the Automated Export System (AES). Member States were meant to build and make the AES and NIS operational, including by ensuring full migration of the relevant economic operators' systems, by 31 December 2023 according to the Union Customs Code (UCC) ([Regulation No. \(EU\) 952/2013](#)) and the UCC Work Programme ([Commission Implementing Decision \(EU\) 2023/2879](#)). The AES aims to automate the completion of the export procedures and exit formalities covering common, national and external domains. The NIS ensures that relevant measures of both a fiscal and non-fiscal nature are applied to goods imported into the EU. By providing interconnections with various other national applications, the NIS plays a central role in ensuring, among others, the effective collection of revenues and the protection of the EU's financial interests, as well as the enforcement of EU level and national restrictions in connection with the import of goods. These actions contribute to protecting the EU market and consumers from non-compliant goods. The Commission considers that Greece, France and Portugal have not complied with their requirements to deploy the customs electronic systems concerned. The Commission had previously sent letters of formal notice to [Greece](#) and [France](#), and is now sending a reasoned opinion to Greece for failing to deploy the NIS, as well as a reasoned opinion to France and a letter of formal notice to Portugal for failing to meet their obligations to deploy the AES. These Member States now have two months to respond and address the shortcomings raised by the Commission. In the absence of a satisfactory response, the Commission may decide to refer France and Greece to the Court of Justice or issue a reasoned opinion against Portugal for failing to deploy the relevant customs electronic systems.

Referral to the Court of Justice

Commission decides to refer Slovakia to the Court of Justice for failing to deploy the electronic system for Temporary Storage for air transport

Today, the European Commission decided to refer **Slovakia** ([INFR\(2025\)2021](#)) to the Court of Justice of the European Union for failing to deploy the electronic system for Temporary Storage for air transport containing information on non-Union goods presented to customs and held in temporary storage pending their placement under a customs procedure or re-export. Under the Union Customs Code (UCC) ([Regulation \(EU\) No 952/2013](#)) and its Implementing Act ([Regulation \(EU\) 2015/2447](#)), Member States were required to build and make the electronic system for Temporary Storage for air transport operational by the applicable deadline. The system allows the relevant declarations for temporary storage of goods arriving by air to be lodged electronically. This contributes to a safer and better-regulated internal market by enabling customs authorities to monitor goods from their entry into the EU until they are placed under a customs procedure or re-exported. This helps ensure that imported goods comply with applicable EU and national requirements. The Commission considers that Slovakia has failed to fulfil its obligations to deploy the electronic system for Temporary Storage for air transport. The Commission sent a [letter of formal notice](#) to Slovakia on 7 May 2025, followed by a [reasoned opinion](#) on 11 December 2025. As Slovakia has not complied with the applicable requirements, the Commission is now referring the case to the Court of Justice. The Commission's action aims to ensure the timely deployment of the customs electronic systems required under the UCC, which are essential for the effective supervision of goods entering the EU and for the proper functioning of the EU Customs Union. The Commission considers that efforts by the authorities have, to date, been insufficient and is therefore referring Slovakia to the Court of Justice of the European Union. More information is in the [press release](#).

7. Mobility and Transport

(For more information: Anna-Kaisa Itkonen – Tel.: +32 2 295 75 01; Anni Juusola – Tel.: +32 2 296 09 86)

Reasoned opinions

Commission calls on Czechia to update rules on the transport of dangerous goods

Today, the European Commission decided to send a reasoned opinion to **Czechia** ([INFR\(2025\)0208](#)) for failing to completely transpose the Inland Transport of Dangerous Goods Directive ([Directive 2008/68/EC](#)) as amended by Directive (EU) 2025/149) into national legislation. The amended

Directive establishes a single, common legal framework for the safe, secure and harmonised transport of dangerous goods across EU Member States by road, rail and inland waterways. It creates a single regime that applies international safety standards to cross-border transport, as well as to national transport within individual EU countries. The amended Directive also incorporates into EU law the amendments to international agreements on transport of dangerous goods, made between 2022 and 2024. The deadline for Member States to transpose the amended Directive into their national legislation was 30 June 2025. Czechia did not take all the measures necessary to ensure the full transposition of the Directive into its national law and failed to notify the Commission of any such measures. The Commission sent a letter of [formal notice](#) to Czechia in July 2025. In its reply of September 2025, Czechia committed to amending its national legislation to ensure full compliance with the Directive. However, so far, this revision has not been completed. Therefore, the Commission has decided to issue a reasoned opinion to Czechia, which now has two months to respond and take the necessary measures. Otherwise, the Commission may decide to refer the case to the Court of Justice of the European Union.

Commission calls on Portugal to fulfil its obligations under EU maritime security legislation

Today, the European Commission decided to send a reasoned opinion to **Portugal** ([INFR\(2025\)2166](#)) for failing to fulfil its obligations arising from the EU maritime security legislation, namely [Regulation \(EC\) No 725/2004](#), [Directive 2005/65/EC](#) and [Regulation \(EC\) No 324/2008](#). The legal framework sets security requirements for ships, port facilities and ports, and lays out procedures for maritime security inspections. These measures are important to enhance the security of ports and ships against threats of intentional unlawful acts and the resilience of the EU's critical infrastructure. The Commission finds that Portugal does not carry out all the administrative and control tasks required for the effective implementation of EU maritime security legislation. Today's reasoned opinion follows a [letter of formal notice](#) sent by the Commission in November 2025. Portugal now has two months to reply and take the necessary measures. Otherwise, the Commission may refer the case to the Court of Justice of the European Union.

Commission urges Spain, France and Italy to comply with EU rules on port services

Today, the European Commission decided to send a reasoned opinion to **Spain** ([INFR\(2025\)4021](#)), **France** ([INFR\(2025\)2180](#)) and **Italy** ([INFR\(2025\)2181](#)) for failing to fulfil their obligations under Article 4(3) and (4) of the Port Services Regulation ([Regulation 2017/352/EU](#)) and Article 49 of the Treaty on the Functioning of the European Union. Those provisions allow Member States, under strict conditions of transparency, non-discrimination and proportionality, and with the objective of ensuring compliance with their social and labour law including rules on labour inspections, to impose a flag requirement for vessels providing towage or mooring operations in ports located on their territory. Spain, France and Italy have imposed a requirement for vessels used for towage and mooring in their respective ports to fly their respective national flags, to ensure that national social laws apply. However, as the Commission explains in the reasoned opinion, the Port Services Regulation already empowers the Member States to enforce such national social and labour laws regardless of the flag of the vessel subject to an inspection. Should Member States nonetheless decide to impose a flag requirement, this needs to be defined as a flag of any EU Member State instead of a national flag of a particular Member State. A national flag requirement, as formulated by Spain, France and Italy, is therefore not in line with the EU obligations under Article 4(3) and (4) of the Port Services Regulation and the freedom of establishment set out in Article 49 of the Treaty on the Functioning of the European Union. In January 2026, the Commission sent [letters of formal notice](#) to the three Member States for failing to fulfil their obligations under this legislation. The Commission notes that Spain, France and Italy have still not fulfilled the obligations. Therefore, the Commission is sending a reasoned opinion to the three Member States, which now have two months to respond and address the shortcomings raised by the Commission. Otherwise, the Commission may decide to refer the case to the Court of Justice of the European Union.

Referral to the Court of Justice

Commission decides to refer Bulgaria to the Court of Justice of the European Union for failing to transpose EU rules on hired vehicles

Today, the European Commission decided to refer **Bulgaria** ([INFR\(2023\)0192](#)) to the Court of Justice of the European Union for failing to transpose almost all measures of the Hired Vehicles Directive ([Directive \(EU\) 2022/738](#)) into national legislation. This Directive sets minimum standards for the use of rented vehicles hired without drivers for transporting goods. The common standards can reduce costs and increase flexibility for businesses that transport goods by road. Member States had to

transpose the Directive into national law and comply with its provisions by 6 August 2023. As Bulgaria did not transpose the Directive by then, the Commission sent a [letter of formal notice](#) to Bulgaria in September 2023, and a [reasoned opinion](#) in December 2024. Since then, Bulgaria has notified some national transposition measures. However, the Commission services concluded that only one provision of the Directive, the one determining proof of compliance, has been transposed. The Commission considers that efforts by the Bulgarian authorities have been insufficient and is therefore referring Bulgaria to the Court of Justice of the European Union. More information is in the [press release](#).

8. Financial Stability, Financial Services and Capital Markets Union

(For more information: Siobhan McGarry - Tel.: +32 2 296 47 98; Saul Louis Goulding – Tel.: +32 229-64735)

Letters of formal notice

Commission calls on Italy and Slovenia to end the discriminatory portfolio-allocation requirement for tax-incentivized Savings and Investment Accounts

The European Commission decided to open an infringement procedure by sending a letter of formal notice to **Italy** ([INFR\(2026\)2170](#)) and **Slovenia** ([INFR\(2026\)2169](#)) for failing to comply with Article 63 of the [Treaty on the Functioning of the European Union](#). The Commission considers that certain provisions of the Italian law on Individual Long-Term Savings Plan and Slovenia's law on Individual Investment Accounts constitute an unjustified restriction on the free movement of capital. According to the Italian law, in order to benefit from preferential tax treatment, a minimum share of the portfolio held in such accounts must comprise financial instruments issued by companies that are resident in Italy or in the European Economic Area but have a permanent establishment in Italy. In Slovenia, in order to benefit from preferential tax treatment, additional contributions to the special sub-account of an Individual Investment Account may be made only if they are invested in financial instruments issued by companies either having their seat in Slovenia or issued by the Republic of Slovenia. When designed properly, [Savings and Investment Accounts](#) (SIAs) can play a crucial role in advancing the objectives of the [Savings and Investments Union](#) by making capital markets more attractive and easier to access for retail investors, increasing competition among providers and encouraging innovation. As currently designed, the Italian and Slovenian tax-incentivized Savings and Investment Accounts discourage their residents from investing in companies in other Member States, limiting their opportunities to diversify investments across the EU Single Market. Among others, this also constitutes an obstacle for non-domestic companies wanting to attract cross-border investments from Italy and Slovenia, respectively, thereby contributing to the fragmentation of EU capital markets. The Commission is therefore sending a letter of formal notice to Italy and Slovenia, which now have two months to respond and address the shortcomings raised by the Commission. In the absence of a satisfactory response, the Commission may decide to issue a reasoned opinion.

Reasoned opinions and additional reasoned opinion

Commission asks Sweden to comply with EU rules on the management of bank crises

Today, the European Commission decided to send a reasoned opinion to **Sweden** ([INFR\(2024\)2036](#)) for failing to correctly transpose the Bank Recovery and Resolution Directive ([Directive EU 2014/59](#)) as amended by the second Bank Recovery and Resolution Directive ([Directive \(EU\) 2019/879](#)). The Directive lays down the rules for orderly management of the failure of banks and investment firms. The amendments introduced by the second Bank Recovery and Resolution Directive ([Directive \(EU\) 2019/879](#)) include, among others, detailed rules on the debt buffer to be held by banks and investment firms in order to be able to absorb losses and be recapitalised in resolution (so-called "minimum requirements for own funds and eligible liabilities" or "MREL"). The Commission found that several technical aspects of the national rules adopted by Sweden did not comply with the Directive as amended. The Commission sent a letter of formal notice to Sweden [in April 2024](#) regarding those issues. Sweden committed to amending the national legislation to ensure full compliance with the Directive. While changes had been made to Swedish law to address most of the findings made in the letter of formal notice, not all issues identified in the letter have been satisfactorily addressed to date. These concern in particular, the creditor hierarchy in insolvency and the type of instruments governed by third-country law that may be exempted from the requirement to include a contractual clause recognising application of the bail-in tool by EU authorities. By not complying with those rules, Sweden impedes the application of resolution actions that aim to help banks and investment firms to

fail with a minimum impact on financial stability and preserve the continuity of their functions while relying primarily on the resources of existing shareholders and creditors. Therefore, the Commission has decided to issue a reasoned opinion to Sweden, which now has two months to respond and take the necessary measures. Otherwise, the Commission may decide to refer the case to the Court of Justice of the European Union.

Commission calls on Bulgaria to amend its legislation on the acquisition of agricultural land

The European Commission has sent an additional reasoned opinion to **Bulgaria** ([INFR\(2015\)2018](#)) to amend its legislation on the acquisition of agricultural land in line with the [Treaty on the Functioning of the European Union](#). The Bulgarian Law on Ownership and Use of Agricultural Land (ZSPZZ) requires individuals and legal entities seeking to acquire agricultural land in Bulgaria to have been resident or established in the country for more than five years. Introduced in 2014, these national rules imposed significant restrictions on the acquisition of Bulgarian agricultural land by non-residents and newly established entities. The European Commission considered that these requirements disproportionately restricted the free movement of capital, and as well as the freedom of establishment. In 2016, the Commission issued [a reasoned opinion](#) to request Bulgaria to remedy the problem. Even if various discussions between the Commission and Bulgaria followed, to date the issue persists. Additionally, the Court of Justice of the EU provided clarity on the subject matter in its judgment in [case C-562/22 JD v/ OB](#) ruled on 18 January 2024. In its ruling, it found that EU rules on the free movement of capital precludes requiring a person to reside in a country for more than five years to buy agricultural land. Against this background, the Commission complements its existing views on the infringement through an additional reasoned opinion. The law amendments requested will facilitate the acquisition of agricultural land in Bulgaria by EU citizens. If Bulgaria fails to bring its national legislation in line with EU law within two months, the Commission may decide to refer this matter to the Court of Justice of the EU.

Commission calls on six Member States to fully transpose the Sixth Capital Requirements Directive

The European Commission decided to send a reasoned opinion to **Greece** ([INFR\(2026\)0169](#)), **Spain** ([INFR\(2026\)0172](#)), **the Netherlands** ([INFR\(2026\)0197](#)), **Portugal** ([INFR\(2026\)0203](#)), **Romania** ([INFR\(2026\)0206](#)) and **Finland** ([INFR\(2026\)0174](#)), for failing to fully transpose the Sixth Capital Requirements Directive (CRD6) ([Directive \(EU\) 2024/1619](#)). The deadline for Member States to transpose the CRD6 into national law was 10 January 2026. In [March 2026](#), the European Commission decided to open the infringement procedure by sending a letter of formal notice to all Member States that failed to fully transpose the CRD6 Directive at the time. CRD6 is an important update of the EU prudential banking framework that aims to harmonise the rules for the provision of banking services by third-country undertakings in the EU, by subjecting them to a set of minimum requirements and minimum harmonised rules for the provision of services. It also seeks to harmonise supervisory powers and tools in a number of areas, such as prudentially relevant transactions, periodic penalty payments, fit-and-proper assessments and independence of supervisors; and to further strengthen the provisions on environmental, social and governance risks by better integrating their management into the prudential framework. It benefits EU citizens by providing financial stability, ensuring that banks can provide loans and services to citizens in every economic circumstances. To date, the six Member States have not yet communicated transposing measures. The Commission is therefore issuing a reasoned opinion to the Member States concerned which now have two months to respond and to complete their transposition and notify their measures to the Commission. In the absence of a satisfactory reply, the Commission may decide to refer the case to the European Court of Justice with a request to impose financial sanctions.

9. Digital economy

(For more information: Thomas Regnier - Tel.: +32 2 299 10 99, Patricia Poropat – Tel.: + 32 2 298 04 85)

Additional letter of formal notice

Commission asks Bulgaria to comply with the Digital Services Act and empower the national authorities to enforce it

The European Commission decided to send an additional letter of formal notice to **Bulgaria** ([INFR\(2024\)2241](#)) for not complying with the Digital Services Act (DSA) ([Regulation \(EU\) 2022/2065](#))

The Commission already raised its concerns in a reasoned opinion sent to Bulgaria in May 2025. The Commission considers that Bulgaria fails to fully comply with the DSA. Indeed, under the DSA, Member States must designate [Digital Services Coordinators](#), national authorities responsible for enforcing the Regulation within their jurisdiction. The Digital Services Coordinators must be fully operational to give full effect to the provisions of the DSA in the territory of their Member State to ensure that users benefit from its rules and to create legal certainty for companies. Following the Commission's [letter of formal notice](#) and subsequent [reasoned opinion](#), Bulgaria adopted legislation empowering one of the authorities acting as Digital Services Coordinators. The Commission considers that Bulgaria is still failing to comply by not designating and empowering the Personal Data Protection Commission and the Electronic Media Council, national authorities that would complete the national enforcement framework of the DSA. Moreover, it considers Bulgaria wrongfully implemented the powers to sanction foreseen by the DSA, as the law does not always respect the maximum fine limits, nor does it ensure that all penalties are effective, proportionate, and dissuasive, also in view of the distinct treatment of natural and legal persons, which is not established under the Regulation. Bulgaria now has two months to respond and address the shortcomings raised by the Commission. In the absence of a satisfactory response, the Commission may decide to issue an additional reasoned opinion.

10. Agriculture

(For more information: Louise Bogey – Tel.: +32 2 296 97 76; Paula Clara Ritter-Moschütz – Tel.: +32 2 296 40 83)

Reasoned opinion

Commission calls on Belgium to fully transpose the Directive updating rules on the composition, labelling and naming of honey, fruit juices, fruit jams and dehydrated milk

Today, the European Commission decided to send a reasoned opinion to **Belgium** ([INFR\(2026\)0014](#)) for failing to fully transpose [Directive \(EU\) 2024/1438](#). This Directive amended the so-called "Breakfast directives" which lay down common rules on the composition, sales names, labelling and presentation of honey ([Directive 2001/110/EC](#)), fruit juices ([Directive 2001/112/EC](#)), jams, jellies, marmalades and sweetened chestnut purée ([Directive 2001/113/EC](#)), and dehydrated milk ([Directive 2001/114/EC](#)). These rules aim to ensure the free movement of these products within the internal market and help consumers make informed choices. This directive requires Member States, among other things, to transpose the new rules on mandatory origin labelling for honey, to introduce additional categories of fruit juices (reduced-sugar fruit juices) and to allow the label to state that 'fruit juices contain only naturally occurring sugars'. The Directive also increases the minimum fruit content in jams, to allow the term 'marmalade' as a synonym of 'jam', and to modernise the labelling of dehydrated and evaporated milk. The full implementation of the rules on composition and labelling for some breakfast foods ensures their free movement within the internal market and help consumers make informed choices. The deadline for Member States to transpose the amended Directive into their national legislation was 14 December 2025. Belgium did not take all measures necessary to ensure the full transposition of the directive into its national law and failed to notify the Commission of any such measures. The Commission sent a [letter of formal notice](#) to Belgium in January 2026. Since then, Belgium notified several transposition measures but still failed to notify any measures transposing Article 3 and Annex II to Directive 2024/1438, relating to fruit jams, jellies and marmalades and sweetened chestnut purée intended for human consumption. Therefore, the Commission has decided to issue a reasoned opinion to Belgium, which now has two months within which to respond and take the necessary measures. Otherwise, the Commission may decide to refer the case to the Court of Justice of the European Union.

11. Jobs and social rights

(For more information: Eva Hrnčirova - Tel.: +32 2 298 84 33; Eirini Zarkadoula - Tel.: +32 2 295 70 65)

Additional letter of formal notice

Commission calls on Greece to adopt measures ensuring that its alert mechanism system

become fully operational in compliance with the EU rules

The European Commission decided to send an additional letter of formal notice to **Greece** ([INFR\(2018\)2172](#)), providing further details on the shortcomings identified in the implementation of the alert mechanism system. The alert mechanism is designed to notify other Member States of restrictions or prohibitions imposed on professionals, as well as cases involving falsified diplomas. This exchange takes place through the [Internal Market Information system](#) (IMI), the IT tool competent authorities use to report and access this information across the EU. Greece's alert mechanism system remains only partially operational, it does not adequately notify other Member States and further measures are needed to ensure that it becomes fully effective in practice and thus compliant with Directive 2005/36/EC on the recognition of professional qualifications ([Directive 2005/36/EC](#)). Following its initial [letter of formal notice](#) to Greece, the Commission has identified some additional technical aspects and grievances that need to be addressed. Therefore, the Commission has decided to send an additional letter of formal notice calling on Greece to address the outstanding shortcomings in the implementation of the alert mechanism set out under the Professional Qualifications Directive, which now has two months to respond and take necessary measures. Otherwise, the Commission may decide to address an additional reasoned opinion to Greece.

Letter of formal notice post-judgment (Article 260 TFEU)

Commission calls on Slovakia to comply with the EU's Court of Justice ruling on recognition of professional qualifications

The European Commission decided to send a letter of formal notice to **Slovakia** ([INFR\(2018\)2304](#)) for not fully complying with the Court of Justice's ruling ([C-773/22](#)) on the recognition of professional qualifications ([Directive 2005/36/EC](#)) as amended by [Directive 2013/55/EU](#) ('the Professional Qualifications Directive'). In its judgement July 29 2024, the Court found that Slovakia had failed to fulfil several of its obligations under the Professional Qualifications Directive. While Slovakia has addressed the main shortcomings identified, it has not yet fully remedied the issue relating to the recognition of traineeship periods completed abroad. In particular, the necessary procedures and guidelines are not yet fully in place for some professions. The EU rules on the recognition of professional qualifications make it easier for professionals to move and provide services across the EU, while ensuring appropriate safeguards for citizens and consumers. They apply to a wide range of regulated professions, including doctors, nurses, dentists, midwives, pharmacists, veterinarians, and architects. The Commission is therefore sending a letter of formal notice to Slovakia, which now has two months to reply and adopt the necessary measures. In the absence of a satisfactory response, the Commission may decide to refer the case to the Court of Justice and request financial sanctions.

12. Competition

(For more information: Ricardo Cardoso – Tel.: +32 2 298 01 00; Sara Simonini – Tel.: +32 2 298 33 67)

Referral to the Court of Justice

Commission decides to refer Belgium to the Court of Justice of the European Union over recognition of investor-State arbitration awards that violate the principle of autonomy of EU law

Today, the European Commission decided to refer **Belgium** ([INFR\(2025\)2199](#)) to the Court of Justice of the European Union for failing to comply with its obligation under EU law not to recognise investor-State arbitration awards that violate the principle of autonomy of EU law. The arbitration awards in question oblige certain Member States to pay compensation to some investors because of a modification of a renewable energy scheme. After the Court of Justice clarified that awards of this kind infringe EU State aid rules and therefore should not be enforced, those Member States notified the arbitration awards in question to the Commission as State aid. The awards may not be paid out until the Commission has approved them. However, the Belgian administrative authorities recognised the arbitral awards, making them directly enforceable in Belgium, without waiting for the Commission to authorise the other Member States to grant the State aid. By doing so, Belgium created an imminent risk for the other Member States to be forced to pay the compensation, which would be in breach of EU rules concerning the general principle of autonomy of the Court of Justice, as well as in breach of the standstill obligation of [Article 108\(3\)](#) TFEU and Commission decision [SA.40348](#). The Belgian authorities should have refused recognition under the principle of sincere cooperation. The

Commission sent a [letter of formal notice](#) to Belgium in December 2025, and a [reasoned opinion](#) in April 2026. The Commission considers that the Belgian authorities have not addressed the infringement and is therefore referring Belgium to the Court of Justice. More information is in the [press release](#).

** Updated 02/10/2026 at 8h*

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Press contacts:

[Arianna PODESTA](#) (+32 2 298 70 24)

General public inquiries: [Europe Direct](#) by phone [00 800 67 89 10 11](#) or by [email](#)